

BMAI 8-HOUR RELAY

PARTICIPANT WAIVER, ASSUMPTION OF RISK, RELEASE OF LIABILITY AND INDEMNITY AGREEMENT

IMPORTANT — PLEASE READ CAREFULLY

BY ELECTRONICALLY ACCEPTING THIS AGREEMENT, YOU ACKNOWLEDGE AND ASSUME THE RISKS OF PARTICIPATION AND GIVE UP CERTAIN LEGAL RIGHTS, INCLUDING THE RIGHT TO SUE THE RELEASED PARTIES FOR CLAIMS ARISING FROM THEIR NEGLIGENCE, TO THE FULLEST EXTENT PERMITTED BY LAW.

This Agreement applies to participation in the **BMAI 8-Hour Relay**, scheduled for **September 12, 2026**, at **Swangard Stadium in Burnaby, British Columbia**, and to all related activities organized, authorized, or conducted in connection with the Event, including registration, check-in, warm-up, competition, relay exchanges, recovery periods, team activities, award ceremonies, and reasonable movement within designated Event areas before, during, and after the Event.

For the purposes of this Agreement, the “**Event**” means the BMAI 8-Hour Relay and all activities described above.

1. VOLUNTARY PARTICIPATION AND ASSUMPTION OF RISK

I understand and acknowledge that participation in running, relay racing, endurance events, and related activities involves inherent and other risks, dangers, and hazards.

These risks may arise from my own actions or inactions, the actions or inactions of others, the condition of the premises or equipment, weather and environmental conditions, Event organization or operations, or the negligence of one or more of the Released Parties.

The risks include, but are not limited to:

- slips, trips, stumbles, and falls;
- collisions or physical contact with runners, relay participants, volunteers, officials, staff, spectators, contractors, equipment, barriers, vehicles, or other persons or objects;
- crowding, congestion, overtaking, lane changes, relay exchanges, sudden stops, and unexpected movements by other participants;
- uneven, wet, slippery, damaged, obstructed, or otherwise hazardous track, walkway, field, facility, or other surface conditions;
- muscle strains, sprains, fractures, dislocations, joint injuries, tendon or ligament injuries, cuts, bruises, head injuries, and other physical injuries;

- fatigue, overexertion, exhaustion, dehydration, electrolyte imbalance, heat exhaustion, heat stroke, hypothermia, or other weather-related illness;
- dizziness, fainting, loss of consciousness, cardiac events, respiratory distress, stroke, or other sudden medical emergencies;
- aggravation of a known or unknown pre-existing injury, illness, or medical condition;
- risks associated with repeated running legs, warm-up, recovery periods, relay exchanges, and prolonged presence and participation during an eight-hour endurance event;
- inadequate preparation, training, hydration, nutrition, rest, or recovery;
- adverse reactions to food, beverages, supplements, products, or substances consumed or used before, during, or after the Event;
- equipment failure or malfunction;
- limited availability of immediate medical care or delays in emergency response, medical treatment, or transportation;
- adverse weather, smoke, poor air quality, extreme temperatures, lightning, rain, wind, or other environmental conditions;
- communicable or infectious diseases arising from participation in or attendance at a public event;
- acts, omissions, errors in judgment, or negligence of other participants or third parties;
- negligent rescue operations or emergency response; and
- other risks, dangers, and hazards that may be known or unknown, obvious or hidden, foreseeable or unforeseeable.

I freely and voluntarily choose to participate in the Event and knowingly accept and assume all risks, dangers, and hazards associated with my participation, including the risk of serious injury, illness, permanent disability, property damage, economic loss, or death.

2. HEALTH, FITNESS, AND PERSONAL RESPONSIBILITY

I confirm that I am physically capable of participating in the Event and have adequately prepared for the physical demands of my participation.

I understand that it is my responsibility to determine whether I am medically and physically capable of participating.

I acknowledge that the Event Organizer and the Released Parties do not provide medical advice, medical examinations, or medical clearance.

I agree that I will not participate if I know or reasonably believe that an injury, illness, medical condition, medication, lack of preparation, or other circumstance would make my participation unsafe.

I accept responsibility for monitoring my physical condition before, during, and after participation.

If I experience chest pain, severe shortness of breath, dizziness, confusion, loss of coordination, loss of consciousness, or other signs of serious physical distress, I agree to immediately stop participating and seek assistance.

I am responsible for my own hydration, nutrition, clothing, footwear, medication, sun protection, and other personal needs.

3. RELEASE AND WAIVER OF LIABILITY

In consideration of being permitted to register for, attend, enter, participate in, volunteer at, or otherwise take part in the Event, I hereby waive, release, and forever discharge:

Vancouver Runaholics Running & Fitness Society; BMAI; the City of Burnaby; the owners, operators, managers, licensors, and occupiers of Swangard Stadium and all other Event premises; Event sponsors, partners, vendors, suppliers, contractors, subcontractors, timing providers, technology providers, food and beverage providers, photographers, media organizations, security providers, medical and first aid providers; and each of their respective directors, officers, employees, volunteers, coaches, team leaders, race directors, officials, agents, representatives, insurers, successors, and assigns

collectively referred to as the “**Released Parties,**”

from any and all claims, demands, actions, causes of action, proceedings, damages, losses, liabilities, costs, and expenses of any kind arising from or related to my registration, attendance, presence at, or participation in the Event.

This release includes, without limitation, claims arising from:

- personal injury;
- illness;
- disability;
- death;
- property damage or loss;
- economic or financial loss;
- negligent organization, administration, supervision, instruction, or operation of the Event;
- negligent design, inspection, maintenance, repair, or condition of Event premises, facilities, courses, tracks, exchange zones, equipment, barriers, or other Event areas;
- negligent acts or omissions of volunteers, staff, officials, contractors, medical personnel, or other persons associated with the Event;

- negligent rescue operations, first aid, emergency response, or delays in obtaining medical treatment; and
- **ORDINARY NEGLIGENCE, BREACH OF DUTY, BREACH OF CONTRACT, OR OTHER ACTS OR OMISSIONS OF THE RELEASED PARTIES, TO THE FULLEST EXTENT PERMITTED BY APPLICABLE LAW.**

I understand that this Release is intended to apply even where a claim alleges that injury, illness, loss, damage, or death was caused or contributed to by the negligence of one or more Released Parties.

Nothing in this Agreement is intended to exclude liability that cannot lawfully be excluded under applicable law.

4. COVENANT NOT TO SUE

To the fullest extent permitted by law, I agree not to commence, maintain, or participate in any legal claim or proceeding against any Released Party in relation to any matter released under this Agreement.

This covenant is intended to apply to claims made directly by me and, to the extent permitted by law, claims made on my behalf or through me.

5. INDEMNITY AND RESPONSIBILITY FOR MY CONDUCT

I agree, to the fullest extent permitted by law, to indemnify and hold harmless the Released Parties from claims, liabilities, losses, damages, costs, and reasonable legal expenses arising from:

- my negligent, reckless, intentional, or unlawful conduct;
- my violation of Event rules, policies, procedures, or safety instructions;
- injury, death, loss, or property damage caused by my actions or omissions;
- my unauthorized use, transfer, alteration, or misuse of registration credentials, race identification, timing devices, relay tags, or other Event equipment;
- inaccurate, incomplete, or misleading information provided by me during registration or participation; or
- claims brought by third parties arising from my conduct.

6. EVENT RULES, OFFICIAL DECISIONS, AND SAFETY AUTHORITY

I agree to comply with all Event rules, registration requirements, competition procedures, venue rules, safety instructions, and reasonable directions issued by the Event Organizer, race officials, volunteers, security personnel, venue personnel, and medical personnel.

I understand and agree that the Event Organizer may, in its reasonable discretion:

- refuse or revoke my participation;

- remove me from the Event;
- stop me from continuing to participate;
- disqualify me or my team;
- modify competition procedures;
- adjust Event operations for safety or operational reasons; or
- take other reasonable action necessary for safety, fairness, Event integrity, or compliance with venue requirements.

I understand that decisions concerning safety, rule enforcement, timing, lap counting, results, penalties, and disqualification will be administered under the Event rules and procedures.

7. EMERGENCY MEDICAL TREATMENT

In the event of injury, illness, incapacity, or medical emergency, I authorize Event personnel, volunteers, first aid personnel, medical professionals, and emergency responders to provide or arrange first aid, emergency medical care, ambulance transportation, hospital transportation, or other assistance reasonably considered necessary.

I understand that the Released Parties do not guarantee the availability, timing, quality, or outcome of medical care or emergency response.

I accept responsibility for medical, ambulance, hospital, transportation, medication, and related expenses incurred on my behalf, except to the extent otherwise covered by applicable insurance or law.

8. PERSONAL PROPERTY

I am solely responsible for my personal property before, during, and after the Event.

To the fullest extent permitted by law, the Released Parties are not responsible for loss, theft, misplacement, or damage to clothing, footwear, electronic devices, vehicles, bags, equipment, or other personal property brought to the Event.

Any bag storage, equipment storage, or similar service provided at the Event is provided as a convenience only and does not create a duty of safekeeping or guarantee against loss, theft, or damage.

9. EVENT MODIFICATION, POSTPONEMENT, INTERRUPTION, OR CANCELLATION

I understand and agree that the Event Organizer may modify, delay, interrupt, shorten, relocate, postpone, suspend, or cancel all or part of the Event when reasonably necessary because of:

- severe or unsafe weather;

- lightning;
- wildfire or smoke;
- poor air quality;
- public health concerns;
- emergency conditions;
- venue restrictions;
- government orders or requirements;
- safety concerns;
- facility or equipment failure;
- circumstances beyond the reasonable control of the Event Organizer; or
- any other condition that, in the Organizer's reasonable judgment, may affect participant safety or the proper operation of the Event.

I understand that registration fees, transfers, deferrals, credits, and refunds are governed by the Event's published registration and refund policies.

10. PHOTOGRAPHY, VIDEO, AND MEDIA

I understand that photographs, video recordings, livestreams, audio recordings, interviews, and other media may be created at or in connection with the Event.

I grant the Event Organizer and its authorized photographers, media partners, sponsors, and representatives permission to photograph and record my participation and to use my image, likeness, voice, and appearance for legitimate Event-related purposes, including Event reporting, promotion, websites, social media, sponsor recognition, advertising, archival purposes, and future Event communications, without additional compensation to me.

11. PRIVACY AND EVENT INFORMATION

I understand that personal information provided during registration may be collected, used, stored, and disclosed as reasonably necessary for:

- registration administration;
- team administration;
- participant communication;
- race operations;
- timing, lap counting, and results;
- safety and emergency response;
- incident reporting;
- insurance administration;
- legal and regulatory compliance; and
- other reasonable purposes connected with the administration of the Event.

Personal information will be handled in accordance with applicable privacy laws and the Event Organizer's applicable privacy practices.

12. PARTICIPANTS UNDER THE AGE OF MAJORITY

A participant who is under 19 years of age on the date of the Event is considered a minor for the purposes of the Event registration process.

If the participant is under 19 years of age, a parent or legal guardian must review this Agreement and complete the Parent/Legal Guardian Consent and Acknowledgement section provided through the Event registration system before the participant will be permitted to participate in the Event.

By completing the Parent/Legal Guardian Consent and Acknowledgement, the parent or legal guardian:

- confirms that they are the parent or legal guardian of the minor participant and have authority to provide consent for the minor participant's participation;
- confirms that they have reviewed this Agreement and understand the nature and physical demands of the Event;
- acknowledges the risks, dangers, and hazards associated with the minor participant's participation, including the possibility of serious injury, illness, permanent disability, or death;
- voluntarily consents to the minor participant's participation in the Event;
- confirms that, to the best of their knowledge, the minor participant is physically capable of participating and has received any medical advice or clearance that the parent or legal guardian considers appropriate;
- authorizes Event personnel, volunteers, first aid personnel, medical professionals, and emergency responders to provide or arrange first aid, emergency medical care, ambulance transportation, hospital transportation, or other assistance reasonably considered necessary for the minor participant;
- accepts responsibility for medical, ambulance, hospital, transportation, medication, and related expenses incurred on behalf of the minor participant, except to the extent otherwise covered by applicable insurance or law;
- agrees to ensure that the minor participant complies with Event rules, safety requirements, and reasonable instructions issued by Event officials, volunteers, venue personnel, security personnel, and medical personnel; and
- understands that the Event Organizer may refuse, suspend, or revoke the minor participant's participation for safety reasons, failure to comply with Event requirements, or failure to properly complete the required registration and consent process.

Nothing in this Agreement or in the Parent/Legal Guardian Consent and Acknowledgement is intended to represent that a parent or legal guardian may waive or release any legal right of a minor participant beyond what is permitted by applicable law.

The minor participant and the parent or legal guardian acknowledge that participation in the Event is voluntary and that completion of the required registration and consent process is a condition of participation.

13. ELECTRONIC ACCEPTANCE AND RECORDS

I agree that my electronic acceptance of this Agreement, including acceptance through a checkbox, typed name, electronic signature, registration account, or other electronic confirmation method used by the Event registration system, constitutes my intentional acceptance of this Agreement.

I consent to the use of electronic records in connection with my registration and acceptance of this Agreement.

I understand that the Event Organizer may maintain records relating to my acceptance of this Agreement, including the accepted Agreement version, date and time of acceptance, registration record, electronic signature information, and other reasonable system records associated with the acceptance process.

For a participant under 19 years of age, the Event registration system may also maintain records relating to the Parent/Legal Guardian Consent and Acknowledgement, including the parent or legal guardian's name, relationship to the participant, electronic signature, date and time of acceptance, and applicable Agreement version.

14. ENTIRE AGREEMENT

This Agreement constitutes the entire agreement concerning the assumption of risk, release of liability, waiver, and indemnity matters addressed in this Agreement.

No oral statement or representation by a volunteer, team captain, coach, race official, sponsor representative, or other person modifies this Agreement unless the modification is expressly made in writing by an authorized representative of the Event Organizer.

15. GOVERNING LAW, JURISDICTION, AND SEVERABILITY

This Agreement shall be governed by and interpreted in accordance with the laws of the Province of British Columbia and the applicable federal laws of Canada.

Any dispute relating to this Agreement or participation in the Event shall be subject to the exclusive jurisdiction of the courts of British Columbia.

If any provision of this Agreement is found to be invalid, illegal, or unenforceable, that provision shall be severed or limited to the minimum extent necessary, and the remaining provisions shall continue in full force and effect to the fullest extent permitted by law.

16. PARTICIPANT ACKNOWLEDGEMENT

By electronically accepting this Agreement through the Event registration system, I confirm that:

- I have been given the opportunity to read this entire Agreement before registering or participating;
- I have read and understood this Agreement;
- I understand the nature and risks of participating in the BMAI 8-Hour Relay;
- I understand that serious injury, permanent disability, illness, property damage, or death may occur;
- I understand that this Agreement affects my legal rights;
- I understand that this Agreement includes a release of claims arising from the ordinary negligence of the Released Parties, to the fullest extent permitted by law;
- I have had the opportunity to ask questions and obtain independent advice before accepting;
- the information I provided during registration is accurate;
- I am accepting this Agreement freely and voluntarily; and
- I agree to be legally bound by its terms.

I UNDERSTAND THAT BY ELECTRONICALLY ACCEPTING THIS AGREEMENT, I AM ASSUMING RISKS AND GIVING UP CERTAIN LEGAL RIGHTS, INCLUDING THE RIGHT TO SUE THE RELEASED PARTIES FOR CLAIMS ARISING FROM THEIR ORDINARY NEGLIGENCE, TO THE FULLEST EXTENT PERMITTED BY LAW.

17. PARENT/LEGAL GUARDIAN ACKNOWLEDGEMENT FOR MINOR PARTICIPANTS

This section applies only where the participant is under 19 years of age on the date of the Event.

By electronically accepting the Parent/Legal Guardian Consent and Acknowledgement through the Event registration system, I confirm that:

- I am the parent or legal guardian of the minor participant and have authority to consent to the minor participant's participation;
- I have reviewed this Agreement;
- I understand the nature and physical demands of the BMAI 8-Hour Relay;
- I understand and acknowledge the risks, dangers, and hazards associated with the minor participant's participation, including the possibility of serious injury, illness, permanent disability, or death;
- I voluntarily consent to the minor participant's participation in the Event;

- to the best of my knowledge, the minor participant is physically capable of participating in the Event;
- I authorize emergency medical treatment and transportation when reasonably considered necessary;
- I agree to ensure that the minor participant follows Event rules and reasonable safety instructions;
- I understand that the Event Organizer may refuse, suspend, or revoke the minor participant's participation when reasonably necessary for safety, compliance, or Event integrity; and
- I understand and agree to the Parent/Legal Guardian Consent and Acknowledgement provisions contained in this Agreement.

I CONFIRM THAT I HAVE READ AND UNDERSTOOD THE ABOVE TERMS AND VOLUNTARILY CONSENT TO THE MINOR PARTICIPANT'S PARTICIPATION IN THE BMAI 8-HOUR RELAY.